

SETTLEMENT AGREEMENT UPON TERMINATION

E1. PARTIES

This Settlement Agreement Upon Termination (“Agreement”) is entered into between:

Gemini Moon Trading 7 (Pty) Ltd t/a XL Nexus Travel (“the Company”)

and

(Employee Full Name & ID Number) (“the Employee”).

Employee Physical Address: _____

E2. BACKGROUND AND PURPOSE

E2.1 The Employee’s employment with the Company terminates on _____ (“Termination Date”).

E2.2 The purpose of this Agreement is to:

- a) regulate the settlement of all outstanding financial obligations between the parties;
- b) confirm lawful deductions from final remuneration;
- c) provide certainty regarding post-termination repayment where applicable; and
- d) record mutual rights and obligations arising from the termination of employment.

E2.3 This Agreement must be read together with the XL Nexus Travel People, Performance and Procedures Policy Framework and its annexures, including but not limited to Annexures B, C, and D.

E2.4 Where any outstanding debt remains unpaid at the Termination Date, the Employee shall, if applicable, provide the Company with the name and contact details of any subsequent employer secured. Such information shall be used solely for lawful debt recovery purposes and in compliance with applicable legislation.

E2.5 The Employee consents to the Company processing their personal information for purposes of administering this Agreement, enforcing its terms, and pursuing lawful recovery where necessary, in accordance with applicable legislation, including the Protection of Personal Information Act.

E2.6 This Agreement constitutes the entire agreement between the parties regarding the subject matter herein and supersedes any prior discussions, representations, or understandings, whether written or oral.

E2.7 No amendment, variation, or waiver of any provision of this Agreement shall be valid unless recorded in writing and signed by both parties.

E3. FINAL REMUNERATION

E3.1 The Company shall pay the Employee all remuneration lawfully due up to the Termination Date, including: _____

- a) salary earned;
- b) accrued but untaken statutory annual leave; and
- c) any other payments required by law or contract.

E3.2 Payment of incentives, bonuses, or discretionary benefits shall be subject to the applicable incentive rules and eligibility conditions. _____

E4. OUTSTANDING FINANCIAL OBLIGATIONS

E4.1 The Employee acknowledges that the following amounts are outstanding as at the Termination Date: _____

Description	Amount (R)
Salary Advance	
Acknowledgement of Debt (AOD)	
Personal Travel Booking Facility	
Unauthorised Expenses	
Emergency Assistance Benefit	
Total Outstanding	

E4.2 The Employee confirms that these amounts are valid and enforceable obligations. _____

E5. DEDUCTION FROM FINAL REMUNERATION

E5.1 The Employee expressly authorises the Company, in terms of section 34 of the Basic Conditions of Employment Act, to deduct any outstanding amounts from final remuneration due. _____

E5.2 Deductions shall not exceed the statutory limits prescribed by section 34, unless otherwise lawfully agreed in writing. _____

E5.3 Where an incentive is payable upon termination and any debt remains outstanding, fifty percent (50%) of such incentive shall first be allocated to reduce the outstanding balance, with allocation applied to the oldest debt first. _____

E6. REMAINING BALANCE AND REPAYMENT TERMS

E6.1 Where final remuneration is insufficient to settle the outstanding balance, the remaining amount becomes immediately due and payable. _____

E6.2 The Employee agrees to repay the outstanding balance as follows:

- ☐ Lump sum of R _____ payable by _____
- ☐ Instalments of R _____ per month commencing on _____

E6.3 Failure to comply with the agreed repayment terms constitutes a material breach of this Agreement. _____

E6.4 In the event of default, the Company may institute legal recovery proceedings and may record judgment or default information with applicable credit bureaux in accordance with applicable legislation. _____

E6.5 In the event of breach or default by the Employee requiring legal or formal recovery action by the Company, the Employee shall be liable for all reasonable legal costs incurred on an attorney-and-client scale, including collection and tracing fees, to the extent permitted by law. _____

E6.6 A certificate signed by a Director or authorised Finance representative of the Company reflecting the amount outstanding shall constitute prima facie proof of the indebtedness and the amount due, unless the contrary is proven. _____

E6.7 The Employee acknowledges that the debt recorded in this Agreement constitutes a valid, liquid, and enforceable obligation. _____

E7. NO RE-NEGOTIATION OF AOD

E7.1 Where an Acknowledgement of Debt has previously been signed by the Employee, the Employee confirms that such debt remains binding and enforceable. _____

E7.2 No renegotiation of an AOD shall occur after termination unless approved in writing by the Directors in exceptional circumstances. _____

E8. RETURN OF COMPANY PROPERTY

E8.1 The Employee confirms that all Company property, documentation, devices, and access credentials have been returned or will be returned by the Termination Date. _____

E8.2 Failure to return Company property may result in lawful deduction or recovery action. _____

E9. CONFIDENTIALITY AND POST-EMPLOYMENT OBLIGATIONS

E9.1 All confidentiality, intellectual property, restraint of trade, and non-solicitation obligations survive termination.

E9.2 Nothing in this Agreement limits the Company's rights to enforce such obligations.

E10. DOMICILIUM AND NOTICES

E10.1 The Employee chooses the residential address and email address provided in this Agreement as their domicilium citandi et executandi for all purposes arising from this Agreement.

E10.2 Any notice or demand sent to such address or email shall be deemed to have been received:

- (a) on the date of delivery if delivered by hand;
- (b) three (3) business days after posting by registered mail; or
- (c) on the date of transmission if sent by email.

E10.3 The Employee undertakes to notify the Company in writing of any change of address or email.

E11. FULL AND FINAL SETTLEMENT

E11.1 Subject to compliance with this Agreement, this document constitutes full and final settlement of all financial matters between the parties arising from the employment relationship. _____

E11.2 This Agreement does not waive statutory rights that cannot lawfully be waived. _____

E12. NO ADMISSION OF LIABILITY

E12.1 This Agreement is entered into without admission of liability by either party.

E13. GOVERNING LAW

E13.1 This Agreement shall be governed by the laws of the Republic of South Africa, and the parties consent to the jurisdiction of the Magistrates Court having jurisdiction, notwithstanding that the amount claimed may exceed the normal jurisdiction of such court.

E14. SIGNATURES

Signed at _____ on this _____ day of _____ 20____.

For the Company:

Name: _____

Title: _____

Signature: _____

Employee:

Name: _____

Signature: _____